

TRYON v. ANGELS GUN CLUB

17CV42160 (Related to 19CV44275)

MOTION FOR SUMMARY JUDGMENT

This is a neighbor dispute involving noise, trespass, firearm projectiles, unrecorded parcel assignments, and equitable/prescriptive easements. Before the Court is a defense motion for summary judgment/adjudication. Due to an excusable error on the part of plaintiff's counsel, the opposition papers were filed/served late, causing defendant to falsely assume that the motion was unopposed. There being no reply papers on file a continuance to allow a reply to be served and filed is warranted. Defendant shall file and serve reply papers on or before May 31, 2022. **Hearing is continued to June 10, 2022, at 9:00 a.m. in Department 2.**

The Clerk shall provide notice of this Ruling to the parties forthwith. No formal order pursuant to CRC 3.1312 shall be required.

MOTIONS TO BIFURCATE AND FOR SUMMARY JUDGMENT

This is a personal injury and wrongful death action stemming from a traffic collision on 10/04/19 between two vehicles crossing paths in the 5400 block of State Route 12. Before the Court is a motion to bifurcate and a motion for summary judgment – both presented by defendants Mitchell McGee (driver) and his employer R&M Water Well Drilling and Pumps. (While other parties previously sought bifurcation, those other requests have since been withdrawn, likely based on plaintiffs' representation that the other defendants have reached a settlement.)

Summary Judgment

The purpose of the law of summary judgment is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute. A defendant may prevail on the motion in one of three ways: (1) by affirmatively negating at least one of plaintiff's essential elements; (2) by showing that plaintiff does not have, and cannot get, evidence to establish an essential element after fully exploring plaintiff's case through discovery; or (3) by presenting evidence as to each element of an affirmative defense upon which defendant bears the burden of proof at trial. Once the defendant's initial burden is met, the burden shifts to the plaintiff to show by substantial evidence that a triable issue of material fact exists as to the claim or defense. Contrary to popular folklore, summary judgment is no longer a disfavored remedy; instead, it is "now seen as a particularly suitable means to test the sufficiency of the plaintiff's case" to see if trial is really warranted. (*Perry v. Bakewell Hawthorne, LLC* (2017) 2 Cal.5th 536, 542; *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 851-854.)

Since the operative pleading forms the outer measure of materiality on a motion for summary judgment, a review of that pleading must occur first. (See *Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal.App.5th 438, 444; *Nativi v. Deutsche Bank National Trust Co.* (2014) 223 Cal.App.4th 261, 289-290.) The operative pleading here is the Second Amended Complaint, filed 07/29/20. There are four causes of action stated therein: wrongful death; survival action; negligence; NIED (bystander). Although the essential elements for the causes of action differ slightly, defendants' motion is based entirely on what they describe as a lack of evidence supporting breach of any duty. (See MPA 4:20-21.) Defendants' erroneous commingling of distinct elements (breach and duty) notwithstanding, the contention is easily disposed of without shifting the burden to plaintiffs.

In terms of legal duty, Civil Code §1714(a) provides that "everyone is responsible, not only for the result of his or her willful acts, but also for an injury occasioned to another by his or her want of ordinary care or skill in the management of his or her property or person." This is the codification of the legal duty imposed upon everyone, including defendant, to operate their motor vehicle in a safe manner. (See *Cabral v. Ralphs Grocery Co.* (2011) 51 Cal.4th 764, 771.) Defendants do not dispute that Mitchell had a duty to use ordinary care, and that he